

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/05/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0001622

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: FELIPE GONZALEZ
MARTINEZ, ET AL

vs.

DEFENDANT: 1125 SIR FRANCIS
DRAKE BOULEVARD OPERATING CO.,
LLC

NATURE OF PROCEEDINGS: 1) MOTION – SANCTIONS
2) MOTION – COMPEL ANSWERS TO INTERROGATORIES – DISCOVERY
FACILITATOR PROGRAM

RULING

Plaintiffs Felipe Gonzalez Martinez and Leonardo Tamayo Gallegos filed a motion to compel answers to what they refer to as “Round Two Discovery” of Interrogatories, Requests for Admission, Request for Production of Documents, and Form Interrogatories. Plaintiffs further request sanctions. The first round of discovery also prompted the filing of a request to participate in the discovery facilitator program. On November 19, 2025, the Court issued an order granting Plaintiffs’ motion in part, finding that several of the responses to requests were improper.

The Round Two Discovery pertains to discovery which has been at issue for quite some time. On August 28, 2025, the parties stipulated to participate in the discovery facilitator program on Round Two before filing a motion to compel.

The parties had been working with Discovery Facilitator Janet Lee Miller who was appointed on September 18, 2025. Plaintiffs assert that as part of the agreements with the Facilitator Miller, Defendant had agreed to produce and respond in full compliance with the discovery, but Defendants have failed to comply with numerous items, and have remained evasive in their responses. They assert that their failure to comply with the court’s order and with agreements made with Facilitator Miller is evasive and akin to violating a court order.

Defendant 1123 Sir Frances (“Defendant”) prepared a declaration stating that they were never opposed to signing the agreement with the Facilitator, but did not say they had done so. Defendant further asserts it is not opposed to continuing to work with the Facilitator as an

appointed referee. The court voices its concern that despite propounding this discovery over one year ago, a few of the responses and documents may still be outstanding.

The parties shall appear and explain whether they intend to hire Janet Lee Miller as a referee to deal with the outstanding disputes.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/05/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002989

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: TIMOTHY W.
BAUGHMAN, ET AL

vs.

DEFENDANT: RICHARD H. HESS, ET AL

NATURE OF PROCEEDINGS: MOTION – SUMMARY ADJUDICATION

RULING

The motion for summary adjudication filed by Plaintiffs/Cross-Defendants Timothy W. Baughman and Julie A. McMillan is granted as to Issue Nos. 1, 2, 5, 6, and 9 and is denied as to Issue Nos. 3, 4, 7, and 8.

Procedural History

On October 17, 2024, Plaintiffs/Cross-Defendants Timothy W. Baughman and Julie A. McMillan, individually and as Trustees of the Baughman McMillan 2016 Trust (“Baughman/McMillan”) filed their Complaint against Defendants Richard H. Hess (“Hess”) and Gonzalo Azcona (“Azcona”) (together, “Hess/Azcona”), alleging that Baughman/McMillan own the property at 35 Crest Road in Ross, that Hess owns the neighboring property at 45 Crest Road, and that Azcona and Hess are married and reside at 45 Crest Road. Baughman/McMillan further alleged that after they obtained an arborist report recommending removal of a bay tree on their side of the fence, the Town of Ross approved their application to remove the tree. Hess/Azcona objected to the removal of the tree, claiming it could be on their property, and demanded that Baughman/McMillan obtain a survey. The survey confirmed the tree is exclusively on Baughman/McMillan’s property and that a fence between the two properties is not representative of the property line; specifically, 45 Crest encroaches upon 35 Crest approximately 853 square feet. Baughman/McMillan further allege that Hess/Azcona have harassed them and their son, placed them under surveillance, threatened their safety, made false accusations about them, and refused to cooperate with the property line. Baughman/McMillan assert claims for intentional infliction of emotional distress, stalking, invasion of privacy, defamation, trespass, nuisance, quiet title, and slander of title.

On October 17, 2024, Hess/Azcona filed a Cross-Complaint against Baughman/McMillan, alleging that Baughman/McMillan have bullied, harassed, and slandered them and other neighbors. Hess/Azcona further allege that the tree is over the fence line and